

Chapter 14

AI in Criminal Justice and Rehabilitation



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1 Introduction

The growing integration of artificial intelligence (AI) in U.S. criminal justice demands thoughtful evaluation from social workers, because these systems deeply affect individuals, families, and communities while intersecting with economic inequality, racial disparities, mental health issues, and housing insecurity. Social work plays a pivotal role at these intersections with a holistic, person-in-environment perspective, recognizing that an individual's criminal behavior and system involvement may stem from untreated mental illness, addiction, financial insecurity, trauma, or lack of support (Pettus-Davis & Epperson, 2015). Social workers seek to address these root causes to decrease system engagement and support rehabilitation. They also recognize the systemic injustices that contribute to crime, from structural racism to social service gaps, and advocate change. Whether working with justice-involved individuals, victims, family members of those involved in the system, or communities, social workers bring a focus on rehabilitation, prevention, and social justice that complements the legal system's emphasis on accountability (Butters & Vaughan-Eden, 2011; Sheehan, 2012).

Given the intimate relationship between criminal justice and social work, the rapid integration of AI and data analytics into the justice systems demand close and critical attention from the social work profession. These technological developments have emerged primarily from computer science, statistics, and legal domains, with little involvement of social work despite its central role in criminal justice rehabilitation and support services. Current AI applications range from predictive

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287

policing algorithms that inform patrol deployments to risk assessment instruments used in pre-trial release, sentencing, and community supervision decisions (Silverman, 2023; U.S. Department of Justice, 2024). These technological developments have generated significant debate regarding fairness and ethics, particularly because these tools directly affect vulnerable populations (Angwin et al., 2016; Chouldechova, 2017; Corbett-Davies et al., 2017). The central concern extends beyond technical bias in algorithms to whether AI systems trained on historical criminal justice data inevitably reproduce, or potentially amplify, the structural racism and disparities long documented in U.S. criminal justice systems (Neil & Zanger-Tishler, 2025).

2 Social Work, Criminal and Juvenile Justice, and Rehabilitation

To understand how social work interventions are typically used in criminal justice and rehabilitation systems, it is helpful to have a basic overview of the system's process. The U.S. criminal justice system is a complex network of agencies and processes designed to control crime and impose penalties on those who violate laws. Understanding this system is essential for social workers who operate in this domain, because they often serve as bridges between justice-involved individuals and the services they need to rehabilitate and reintegrate into society.

2.1 U.S. Criminal and Juvenile Justice System

As of 2021, the United States held approximately 1.8 million people in prison and jails—a rate of 531 per 100,000—significantly exceeding other Western nations (Fair & Walmsley, 2024). Mass incarceration in the United States is deeply connected to structural racism, which systematically disadvantages racial minorities, particularly Black Americans (Lee, 2024). Despite comprising only 13% of the U.S. population, Black people account for 34% of those held in local jails, an incarceration rate more than three times that of White people and are disproportionately represented throughout all levels of the justice system, perpetuating racial disparities and adversely affecting individual and community well-being (Zeng & Minton, 2021).

Mass incarceration significantly affects families and communities, with more than 2.7 million children impacted by parental incarceration (Ghandnoosh et al., 2021). Many women serving prison sentences were primary caregivers before sentencing (Kendrick, 2024), and their incarceration can profoundly disrupt family dynamics and negatively affect children's emotional and social development (Miller, 2006). Structural inequalities are further intensified by the school-to-prison pipeline, which disproportionately channels marginalized youth into the juvenile justice

system, limiting their opportunities and contributing to ongoing cycles of disadvantage (Hinton & Cook, 2021; Mallett, 2016). Mental health and substance use disorders are common among individuals involved with the justice system. Approximately 44% of people in jail have a diagnosed mental illness, and 63% face challenges with substance use disorders (Bronson & Berzofsky, 2017; Substance Abuse and Mental Health Services Administration, 2024). The justice system's fragmented structure often disrupts treatment, adversely affecting continuity of care as people transition through the system, such as from incarceration to community reentry (Reingle Gonzalez & Connell, 2014). Furthermore, marginalized populations, including individuals experiencing homelessness (Herbert et al., 2015), those who identify as LGBTQ+ (Brown & Jenness, 2020), immigrants, veterans (Blonigen et al., 2016), and people with intellectual disabilities (Salekin et al., 2010), face compounded structural challenges. These groups typically encounter inadequate resources and persistent barriers when navigating service systems.

The criminal justice process follows a relatively standard sequence of events, though procedures can vary across jurisdictions. The process begins when a crime is reported or observed by law enforcement. An investigation follows, which may lead to an arrest if sufficient evidence exists. However, many reported crimes remain unsolved or result in no arrest. Once arrested, a suspect faces an initial appearance before a judge. Charges are filed and decisions are made about pretrial release, including whether to grant bail or order detention. Some cases may be diverted at this stage through programs that offer alternatives to traditional prosecution. Adjudication involves formal court proceedings to determine guilt. It includes arraignment, where charges are formally presented, followed by either a trial or plea negotiations. Cases may be dismissed, or defendants may be acquitted or convicted. If convicted, the individual receives a sentence that may include incarceration in jail or prison, probation, fines, or other sanctions depending on the severity of the offense and individual factors. The final phase encompasses the implementation of a sentence, whether in an institutional setting like jail or prison or community supervision such as probation or parole. It also includes reentry services when individuals transition back to the community after incarceration.

The juvenile justice system operates as a parallel structure with similar stages but different terminology and a stronger emphasis on rehabilitation rather than punishment. For example, juvenile proceedings use terms like "adjudication" rather than "conviction" and "disposition" instead of "sentencing," reflecting the system's theoretical focus on the best interests of the child.

2.2 Social Work Interventions in the Criminal Justice System

Throughout this process, social work interventions typically occur at multiple points. Social workers serve as partners across the criminal justice continuum, engaging at critical intervention points including diversion programs, probation services, institutional rehabilitation, and re-entry support (Dowden & Andrews, 2004;

Sheehan, 2012). In the justice system, social workers perform comprehensive assessments, deliver mental health services, facilitate substance abuse treatment, and link justice-involved individuals with community resources while implementing evidence-based practices to reduce recidivism and promote rehabilitation (Ward & Maruna, 2007). Their involvement often begins before formal entry into the system through diversion initiatives that redirect individuals, particularly those with mental illness, substance use disorders, or minor offenses, toward treatment rather than incarceration (Lamberti, 2016). As clients navigate the system, social workers in probation settings balance surveillance requirements with case management services whereas those in correctional facilities offer therapeutic programming, crisis intervention, and family support that mitigate the harmful effects of institutional confinement (Patterson, 2019). During the challenging transition from incarceration to community, social workers coordinate comprehensive reentry planning addressing employment, housing, healthcare, and continued treatment needs (Andrews & Bonta, 2010; Jonson & Cullen, 2015).

3 AI in Criminal Justice and Rehabilitation

Advancements in AI, especially in machine learning and data analytics, are transforming the criminal justice system by enhancing efficiency, predictive accuracy, and consistency across various stages—from policing and pretrial processes to sentencing, corrections, and reentry. At the same time, these technologies raise critical ethical and human rights concerns related to bias, transparency, and fairness that require a human-centered approach. This section provides a concise overview of historical and current AI applications in criminal justice and rehabilitation, drawing on real-world case studies. It explores these applications at key stages: policing and investigation, arrest and pretrial processes, sentencing, probation and parole, and rehabilitation and reentry, including some cases in the juvenile justice systems—noting the goals of these tools and evidence of their impacts.

3.1 AI in Policing and Investigation

Predictive policing emerged as one of the earliest and most contested applications of AI in law enforcement. Although there is no comprehensive federal definition of predictive policing, local jurisdictions have defined it as the use of computer algorithms to forecast crime trends (Silverman, 2023). Bratton and Malinowski (2008) popularized this concept, describing how these systems analyze crime data, such as incident times, locations, and offense types, to identify potential “hot spots” or people of interest, with the goal of optimizing resource allocation and crime prevention. For instance, PredPol (rebranded as Geolitica) generated daily risk maps to guide patrol deployments. In Plainfield, New Jersey, the system’s real-world

performance revealed significant limitations—fewer than 0.5% of predictions corresponded to actual crimes, with more than 99% of forecasts failing to materialize (Sankin & Mattu, 2023). More troublingly, researchers found that the system consistently directed police away from predominantly White neighborhoods while heavily targeting areas with higher Black and Latino populations. These performance and bias concerns led to its termination in Plainfield and similarly contributed to the discontinuation of related initiatives in other cities (Sankin & Mattu, 2023).

In Los Angeles, early experiments with predictive policing included Operation LASER, launched in 2011. Utilizing software from Palantir to create a “chronic offender score” based on criminal history, social media activity, and license plates, LASER was initially heralded as a breakthrough. However, investigations revealed that the technology reinforced policing biases and obscured the actual impact of its data-driven decisions, leading to its shutdown in 2019 (Thomas, 2024). Chicago’s experience further underscores these issues. Starting in 2012, the city’s “heat list”—an algorithm designed to predict criminal involvement—disproportionately targeted Black men and was ultimately discontinued in 2019 following inspector general concerns (Charles, 2020).

Facial recognition technology has also become a prominent tool in AI-powered policing. Agencies compile extensive databases from mugshots, driver’s licenses, and social media images to identify suspects. The technology’s limitations became evident in 2020 when Robert Williams, a Black man in Detroit, was wrongfully arrested after an incorrect system match to a surveillance image of a shoplifter (Hill, 2024). Detroit has experienced at least two additional mistaken arrests of Black men, reflecting broader research showing these systems are less accurate for women and people with darker skin tones (Buolamwini & Gebru, 2018). In response, the Detroit Police Department (2024) revised its policies, prohibiting arrests based solely on facial recognition matches. Officers must now secure independent corroborating evidence, such as location data or DNA, before making an arrest.

Among facial recognition surveillance technologies, Clearview AI has emerged as the most controversial and troubling example. Founded in 2016 by Hoan Ton-That with early funding from Palantir co-founder Peter Thiel, Clearview AI’s business model represents an unprecedented invasion of privacy (Hill, 2023). The company has amassed a staggering database of more than 30 billion facial images by scraping photos from social media platforms, all without users’ consent or knowledge. Clearview AI has continued its aggressive data harvesting practices, operating primarily outside meaningful regulatory oversight.

Automated surveillance tools extend beyond facial recognition. Automated license plate readers scan thousands of plates per minute to identify stolen or wanted vehicles, while simultaneously generating comprehensive databases that track the movement of citizens (Finklea, 2024). Recent legislative efforts in multiple states have aimed to restrict data retention practices for these plate readers, yet the technology remains widely in use (Dattani, 2022). Acoustic gunshot detection systems like ShotSpotter are now active in more than 100 U.S. cities. These systems use sound pattern recognition to pinpoint gunfire; however, reports indicate false positive rates as high as 99% in some areas, with the technology often mistaking other

sounds, such as fireworks or backfiring cars, for gunshots (Kang & Hudson, 2024). Moreover, ShotSpotter's deployment is heavily concentrated in predominantly Black and Latino neighborhoods, raising significant concerns about racial bias. In Chicago, for example, false alerts have led to wrongful arrests and strained community–police relations, prompting class action lawsuits against the system (Burke et al., 2022). More recently, Chicago ended its contract with ShotSpotter after research and activism highlighted its unjust outcomes (Thomas, 2024).

One prominent example of surveillance technology is the New York Police Department's Domain Awareness System (New York Police Department, 2021). This tool operates with more than 25,500 closed-circuit surveillance cameras across New York (Amnesty International, 2022) and integrates real-time video, license plate data, and gunshot detection alerts acoustic sensors to help detectives piece together events and track suspects. Although the system quickly highlights potential leads, the final decision to make an arrest remains firmly in the hands of human officers. This approach illustrates how AI can augment investigative work by rapidly processing vast amounts of data, allowing law enforcement to focus on interpretation and action without relinquishing control (New York Police Department, 2021). However, concerns persist regarding mass surveillance, privacy, and potential overpolicing, particularly in heavily monitored communities.

3.2 AI in Arrest and Pre-Trial Processes

The pretrial phase represents one of the most significant areas of AI implementation in criminal justice, particularly through risk assessment tools that inform bail and detention decisions. Traditionally, judges relied on their experience and subjective judgment, sometimes following preset bail schedules (standardized lists that assign fixed bail amounts to specific offenses), to determine whether a defendant should be released before trial. However, concerns about the inequities of cash bail, whereby defendants with financial means can secure their release whereas individuals with fewer resources remain incarcerated, have driven jurisdictions to seek more objective and data-driven approaches.

A widely used example is the Public Safety Assessment, developed by the Arnold Foundation (now Arnold Ventures), which evaluates nine factors drawn from criminal history and demographic data to predict two outcomes: failure to appear in court and engagement in new criminal activity while awaiting trial (Brittain et al., 2021). New Jersey's pretrial reform provides a case study. In 2017, after virtually eliminating cash bail and implementing the assessment statewide, the state experienced a dramatic drop in its pretrial jail population without increasing crime or failure to appear (Anderson et al., 2019). In other words, judges could release many more defendants who prior to reform would have been detained on bail that they could not afford, and yet public safety did not suffer. Defendants returned to court at a similar rate and did not commit new crimes at a higher rate.

Beyond the Public Safety Assessment program, other risk assessment tools illustrate AI's expanding role in both arrest and pretrial processes. In Alaska, for instance, state-developed pretrial tools combine static factors (such as past convictions) with dynamic variables (such as employment status and community ties) to assess flight risk and recidivism (Electronic Privacy Information Center, 2020). Similarly, the DC Risk Assessment Instrument, developed collaboratively by local agencies and independent researchers, employs localized validation studies to tailor pretrial decisions to each jurisdiction's specific conditions (Electronic Privacy Information Center, 2020).

However, the use of AI in pretrial assessment has not been without controversy, as such tools may perpetuate racial disparities present in the data. In New Jersey, although the overall jail population declined, the racial makeup of those detained did not change, indicating that the tool helped reduce jail numbers, but it did not reduce the disparity between Black and White detention rates (Hamilton, 2021; ACLU of New Jersey, 2022). The algorithm may be "fair" in a narrow technical sense because it doesn't consider race and ethnicity and it might have similar accuracy for all racial and ethnic groups, but because the underlying data reflect societal inequities, the outcomes still show racial imbalance.

In another critical example, the Chicago Police Department implemented its Strategic Subject List, or "heat list," that algorithmically identified individuals at risk of involvement in gun violence (González, 2024). In Robert McDaniel's case, being placed on the list led to unexpected police visits and community suspicion. Though he had no violent criminal history, McDaniel was later shot in the legs after being falsely perceived as a police informant due to these visits, raising questions about whether the algorithm's identification contributed to rather than prevented harm (Stroud, 2021).

3.3 *AI in Sentencing*

At the sentencing stage, the most well-known example of technology intervention is the use of risk assessment tools to inform sentencing decisions. In some jurisdictions, judges receive a risk score for a defendant (often the same kind of score used in pretrial or probation contexts) before issuing a sentence, with the intention of guiding them toward appropriate sentencing, such as diverting lower-risk offenders to community penalties and reserving prison for higher risk individuals (Fazel et al., 2022). Correctional Offender Management Profiling for Alternative Sanctions (COMPAS) is one such tool that has been used during sentencing in states like Wisconsin. COMPAS generates risk scores for general recidivism, violent recidivism, and other categories based on a lengthy questionnaire and criminal history data (Brennan et al., 2009). Judges may consider these scores when determining whether to impose incarceration or alternative sanctions.

The use of COMPAS in sentencing came under national scrutiny after a 2016 investigative report by ProPublica, which found racial disparities in the risk scores

assigned to defendants in Broward County, Florida (Angwin et al., 2016). Specifically, the analysis showed that Black defendants who did not reoffend were far more likely than White defendants to have been classified as “high risk” by COMPAS (false positive), whereas White defendants who reoffended were more likely than Black defendants to have been mistakenly classified as “low risk” (false negative). This finding sparked a debate on algorithmic fairness that has come to serve as a touchstone in discussions about AI in criminal justice. For example, research has shown that a risk assessment tool can be well-calibrated—in other words, the likelihood of recidivism is similar across groups—yet still shows imbalances in error rates when base rates differ between racial and ethnic groups (Chouldechova, 2017).

Transparency further complicates the fairness debate. As argued by Rudin et al. (2020), the proprietary and opaque nature of algorithms like COMPAS limits defendants’ ability to understand or contest the basis of their risk scores. This lack of transparency not only hinders external scrutiny but also raises serious due process concerns. For instance, in *State v. Loomis* (2016), the defendant challenged his sentence on the grounds that it was partly determined by a secret algorithm he could not examine. Although the court upheld the use of COMPAS, it emphasized that such scores must not serve as the sole determinant in sentencing and that their limitations should be clearly communicated.

3.4 AI in Probation and Parole

Probation and parole officers are responsible for determining supervision intensity, identifying early signs of non-compliance, and making informed responses to violations. Traditional actuarial risk assessments, such as the Level of Service Inventory-Revised and the Ohio Risk Assessment System, have long guided classification into risk categories (Desmarais et al., 2018). AI is increasingly being integrated into probation and parole systems, influencing supervision strategies, recidivism risk prediction, and decision-making processes.

One notable use of AI involves the Pennsylvania Board of Probation and Parole, which since 2013 has employed machine learning forecasts to inform parole eligibility decisions. To assess individuals’ eligibility for parole and distinguish between those likely to be rearrested for violent versus nonviolent offenses, the board uses algorithms. These algorithms analyze diverse factors, including the individual’s potential for violence, sex offender status, behavior while incarcerated, criminal history, age, intelligence, and insights derived from personal interviews (Berk, 2017). An evaluation report on this tool indicated that although the overall number of people granted parole remained stable, AI integration changed the composition of those receiving parole: individuals assessed as having lower violent recidivism risks became more likely to be granted parole, while higher-risk individuals were less likely (Berk, 2017). Follow-up analyses found

reductions in rearrests for both nonviolent and violent crimes, reflecting how AI can inform parole decision-making.

However, similar to other stages, concerns exist in probation and parole settings. If historical data used to train AI models reflect systemic biases, such as racial disparities in probation revocations, the AI system may perpetuate or even exacerbate those inequities. Research has shown that predictive models can disproportionately categorize individuals from marginalized groups as higher risk due to biased data inputs (Rudin et al., 2020). Although the Pennsylvania study did not explicitly address racial disparities (Berk, 2017), these general concerns emphasize the importance of scrutinizing AI-driven tools for unintended biases. Moreover, the transparency and accountability of AI systems involve are significant challenges. Silverman (2023) underscored how proprietary or opaque algorithms complicate transparency, making it challenging for parole boards, probation officers, and social workers to understand or question the basis of AI-generated recommendations. This can inadvertently push probation and parole systems toward increased surveillance rather than personalized rehabilitative support. Such surveillance-oriented approaches might negatively affect the essential client–officer relationship by limiting the professional discretion of officers to adapt supervision plans to individual contexts. Overreliance on AI risks overlooking important nuances, such as an individual’s personal progress, unique struggles, or rehabilitative milestones (Silverman, 2023). This underscores the necessity of careful integration of AI tools alongside robust human judgment and social work practices.

3.5 AI in Rehabilitation and Re-entry

AI applications in rehabilitation and reentry are still emerging, but they show promise in facilitating personalized interventions and improving program effectiveness. Virtual reality (VR) technology is increasingly being integrated into rehabilitation and reentry programs, offering safe, controlled environments in which individuals can learn and practice essential skills. For instance, VR is used to prevent and manage aggression through programs like Virtual Reality Aggression Prevention Training, during which offenders engage in simulated scenarios designed to help them recognize, regulate, and deescalate aggressive responses with real-time biometric feedback, specifically heart rate and galvanic skin response, which allow patients and therapists to monitor physiological arousal during role-plays and identify early signs of escalation (Klein Tunte et al., 2018). Additionally, immersive VR environments facilitate risk assessment by enabling practitioners to observe behavioral responses in realistic yet ethically safe scenarios, thereby informing tailored intervention strategies and enhancing re-entry readiness (Cornet & Van Gelder, 2020). VR-based exposure therapy is being employed to treat anxiety disorders, posttraumatic stress disorder, and specific phobias among offender populations,

offering controlled exposure that supports desensitization and improved emotional regulation (Ticknor, 2019).

VR also shows the potential to transform therapeutic interventions. For example, VR can enhance cognitive behavioral therapy by enabling role-play scenarios that allow offenders to practice new strategies with immediate, tailored feedback (Ticknor, 2019). In substance abuse treatment, VR can enable controlled exposure to substance-related cues to help manage cravings and reduce relapse risk. Additionally, VR can facilitate remote group therapy and skill development, overcoming challenges such as geographic isolation and limited local resources—a critical advantage for reentry programs (Ticknor, 2019). By simulating real-world scenarios like job interviews and community interactions, VR can equip individuals for successful reintegration through practical, hands-on experiences that build confidence and promote long-term success (Cornet & Van Gelder, 2020).

4 Algorithmic Fairness and Ethics in AI-Driven Criminal Justice

The increasing deployment of AI in criminal justice has precipitated debate and challenges, particularly regarding algorithmic fairness and ethics. This section critically discusses major controversies, the importance of transparency and due process, sources and mechanisms of algorithmic bias, and policy implications with a special emphasis on social work.

4.1 Major Debates and Controversies in Algorithmic Fairness

One influential discussion about algorithmic bias in criminal justice systems began with a study by Angwin et al. (2016). Their investigation of the COMPAS risk assessment tool, which is used to predict the likelihood of reoffending, found that the tool was more likely to classify Black defendants as high risk than White defendants, even when both groups had similar rates of reoffending. For example, imagine two individuals, one who is Black and one who is White, with identical criminal histories and behaviors; the tool would tend to assign a higher risk score to the Black individual, raising concerns that the technology might inadvertently reinforce disparities (Angwin et al., 2016). In response, Northpointe, the developer of COMPAS, argued that the tool was “calibrated” across racial and ethnic groups, meaning that for any given risk score, the actual rate of reoffending is similar regardless of racial and ethnic groups.

Although there is no universally accepted definition of fairness, a wide range of algorithmic fairness metrics have been proposed, including calibration, equalized odds, demographic parity, and predictive parity (Mehrabi et al., 2019).

However, this response also highlights a key challenge: Different methods for measuring fairness can conflict. One approach focuses on overall accuracy, whereas another emphasizes ensuring that errors (such as false positives, such that a person is wrongly labeled as high risk) occur at comparable rates across groups. Achieving both simultaneously can be highly challenging. Chouldechova (2017) further explained this dilemma, also referred to as the impossibility theorem, by demonstrating mathematically that when the base rates of reoffending differ between groups, it is impossible to achieve both perfect calibration and equal error rates. In other words, if the data reflect systemic inequities, such as differences in how communities are policed, then any algorithm may face inherent tradeoffs in fairness (Kleinberg et al., 2016). Thus, focusing on one statistical definition of fairness might lead to unintended consequences, such as inadvertently increasing risk estimates for some populations in an effort to balance error rates (Corbett-Davies et al., 2017).

These debates have far-reaching implications that extend beyond criminal justice research; they shape public policy, legal challenges, and the everyday practices of professionals in fields like social work. For social work professionals, understanding these debates is crucial because the outcomes influenced by such technologies can profoundly affect the lives of the people they serve, making it essential to advocate systems that enhance fairness rather than perpetuate inequalities (Bricout & Goldkind, 2024; Coulton et al., 2015).

4.2 Sources and Mechanisms of Algorithmic Bias

Understanding why and how algorithmic bias arises in criminal justice systems is vital for social work practitioners and researchers, particularly given the well-documented racial and ethnic disparities throughout the U.S. criminal justice system. These disparities, from disproportionate policing to inequitable sentencing, have profound implications for community well-being and policy reform (Pierson et al., 2020). In their comprehensive review, Neil and Zanger-Tishler (2025) suggested that these systemic inequities are embedded in the data used to train risk assessment tools. Although most research has focused on biases in the algorithms, these authors highlighted a more fundamental problem by identifying three distinct pathways through which racial bias in arrest records produces algorithmic bias in criminal justice settings.

Label bias, which poses severe concerns, occurs when the outcome variable that a model seeks to predict—typically arrests, charges, or convictions—is not a direct measure of actual criminal behavior but a proxy that is skewed by systemic inequities. Most risk assessment tools are intended to predict future criminal behavior but are actually trained to predict arrests. Neil and Zanger-Tishler (2025) highlighted that this substitution leads to a fundamental measurement problem when arrest data do not equally reflect actual criminal behavior across racial groups. Arrest records capture only a subset of offending: some people are arrested without having

committed the crime, while many who do offend are never arrested at all. This creates a particularly challenging problem because, unlike in some fields where obtaining better outcome measures might be possible, true criminal offending remains largely unobservable.

The second mechanism is feature bias, which arises when the predictors used in risk assessment tools, such as prior arrests and charges, inherit systemic racial disparities. This is particularly critical in criminal justice because, in many risk assessment tools, past arrests are the most important predictors. Although feature bias could theoretically be addressed by allowing for a race-specific coefficient that adjust for racial differences in predictive power, the authors cautioned that this approach may be normatively problematic because it requires explicitly incorporating race and ethnicity into the model (Neil & Zanger-Tishler, 2025).

The third pathway, sample bias, occurs when the training data are not representative of the population to which the algorithm will be applied. Neil and Zanger-Tishler (2025) discussed how racial bias in sampling can produce complex, sometimes counter-intuitive effects because racial differences in arrest patterns can influence which individuals are included in training datasets.

Neil & Zanger-Tishler's (2025) key insight is that many studies in algorithmic fairness in criminal justice systems treat arrest data as if they reflect an unbiased ground truth—a notion that clashes with extensive criminological evidence of systemic bias in policing (Lee, 2024). This oversight can lead to the development of risk assessment instruments that not only fail to mitigate disparities but also may perpetuate them. For social workers and researchers, understanding these nuances is essential because it equips them to advocate data practices and policy reforms that address the root causes of bias, rather than merely its symptoms.

5 Future Directions and Opportunities

Advancing AI in criminal justice requires prioritizing human-centered approaches that empower individuals, advance social justice, and enhance client well-being, rather than solely emphasizing administrative efficiency. Social workers and community partners are uniquely positioned to envision these technologies to improve outcomes meaningfully for justice-involved individuals and their communities (Pettus-Davis & Epperson, 2015).

5.1 Critically Understanding and Mitigating Algorithmic Bias in AI

Addressing algorithmic bias in AI systems is essential to achieving fairness and equity in criminal justice outcomes. Neil and Zanger-Tishler (2025) outlined several practical suggestions for identifying and mitigating algorithmic bias resulting from biased data. First, risk assessment tools should regularly update their training data to ensure they accurately reflect the populations with which they are used, thereby minimizing sample bias. Although conceptually straightforward, this practice remains uncommon. Second, practitioners must examine whether predictors, such as arrest records, hold the same predictive validity across racial groups, thereby identifying and potentially mitigating feature bias. This process involves checking for discrepancies in predictive outcomes across racial groups and making necessary adjustments, although it is important to recognize that outcomes may suffer from inherent biases. Third, practitioners should limit AI prediction to more serious crimes, avoiding less serious offenses such as drug-related arrests, which are subject to greater policy discretion and less directly relevant to public safety outcomes. Fourth, sensitivity analyses should be employed to understand how hypothetical variations in label bias, whereby arrests imperfectly represent actual criminal behavior, might affect algorithmic fairness. Last, conducting surveys that link official arrest records with self-reported criminal activity is crucial for validating and calibrating AI systems.

5.2 Innovative Applications of Human-Centered AI

Shifting AI applications toward human-centered technologies presents numerous opportunities aligned with social work values such as empowerment, social justice, and enhancing client well-being. Promising examples include AI-driven early warning systems that identify police officers at risk of misconduct by analyzing patterns in use-of-force incidents and complaints, facilitating early interventions to promote accountability and improve officer–community relationships. Similarly, natural language processing can analyze police reports and emergency calls, effectively distinguishing cases that require social services or mental health interventions programs, allowing individuals to practice emotional regulation, job interviews, and essential life skills in controlled, supportive environments (Cornet & Van Gelder, 2020; Ticknor, 2019).

Chohlas-Wood et al. (2024) provided a compelling example of equitable AI applications through their consequentialist framework. Instead of rigidly adhering to formal constraints such as spending parity (equal resource allocation across groups) or equal error rates (equal mistake rates across groups), they advocated an

approach that prioritizes stakeholder preferences regarding outcomes. For instance, in a hypothetical program that offers transportation assistance to attend court appearances, their consequentialist framework emphasizes evaluating the real-world impacts of decisions and explicitly considering stakeholder preferences on trade-offs, such as whether to prioritize increasing overall court appearances or to ensure each group receives equal funding. Stakeholders in this context, including defendants, their families, and court administrators, may weigh these tradeoffs differently. This approach would allow for the optimization of policies through a data-driven, transparent, and stakeholder-informed process, for example, by surveying affected communities on their priorities and tuning the allocation model accordingly.

6 Conclusion and Implications for Social Work

For social workers, evaluating and understanding algorithmic bias and fairness in criminal justice systems carries profound implications for ethical practice, advocacy, and human rights. As algorithmic decision-making tools become increasingly prevalent across domains such as criminal justice, child welfare, and social services, social workers are compelled to cultivate competencies to critically analyze these technologies and their impact on client outcomes (Ahn et al., 2025; Bricout & Goldkind, 2024). Algorithmic systems that leverage vast datasets and machine learning techniques to assess risks, such as recidivism, can inform criminal justice decision-making by enhancing consistency and efficiency (Berk, 2017; Bratton & Malinowski, 2008). However, if not carefully monitored, these tools risk embedding and perpetuating historical biases and discriminatory practices, often disproportionately affecting marginalized groups, including racial minorities and economically disadvantaged communities (Eubanks, 2019; Farayola et al., 2023; O'Neil, 2016; Rudin et al., 2020).

For example, as previously discussed, widely utilized risk assessment tools such as COMPAS have come under scrutiny due to evidence that they may produce a higher false positive rate for Black defendants, inadvertently amplifying racial inequalities despite the appearance of objectivity (Angwin et al., 2016). Similarly, the broader adoption of predictive policing methods, including acoustic gunshot detection and facial recognition software, highlights how ostensibly neutral technologies can exacerbate disparities in surveillance and law enforcement attention, particularly targeting minority communities (González, 2024; Hill, 2024; Thomas, 2024). Such tools often reinforce a feedback loop whereby neighborhoods with historically high arrest rates, reflective of past policing patterns rather than objective crime incidence, continue to be disproportionately monitored, creating cycles of overpolicing and marginalization (Neil & Zanger-Tishler, 2025).

Given their professional commitment to social justice and human dignity, social workers are uniquely positioned to assess these tools critically through a comprehensive, person-in-environment perspective (Mathiyazhagan & Patton, 2024). By highlighting how algorithmic assessments often overlook structural inequalities and

environmental factors, social workers can effectively advocate more equitable and transparent deployment of technology. Furthermore, social work education must evolve to integrate algorithmic literacy, equipping future practitioners with competencies necessary to identify and challenge technological practices that compromise fairness and transparency in criminal justice contexts (Ahn et al., 2025; Rodriguez et al., 2024). Educators and scholars have underscored how fostering algorithmic literacy is crucial, as it enables social workers to recognize the limitations of these predictive tools, challenge assumptions of their neutrality, and proactively demand accountability from developers and policymakers (Bricout & Goldkind, 2024).

By understanding the complexities and technological mechanisms underlying algorithmic bias, social workers can advocate essential reforms, such as transparent reporting practices, regular independent audits, inclusive community involvement, and ethical oversight in the development and deployment of AI systems. Thus, the integration of nuanced algorithmic literacy into social work training programs is not merely an educational priority but an ethical imperative. It equips practitioners to safeguard marginalized populations from discriminatory effects embedded in algorithmic decision-making, ensuring these systems align with principles of justice, fairness, and human-centered practice.

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